

LAM16K11483 LAM16K11483

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C25%2C09%2F02%2F2026

Source SHA-256: bbc7642309129d36f2825a8e272c9116b2c4ee852230472871191ddd1a4fd323

Case Number: LAM16K11483 Hearing Date: September 2, 2026 Dept: 25

HEARING DATE: Wed., September 2, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Maricopa

Meadows Homeowners Association v. Cooper, et al.

APP. FILED: 10-05-16

CASE NUMBER: LAM16K11483

NOTICE: OK

PROCEEDINGS: MOTION

OF MARICOPA MEADOWS HOMEOWNERS ASSOCIATION FOR ATTORNEYS' FEES AND COSTS

MOVING PARTY: Plaintiff

Maricopa Meadows Homeowners Association

RESP. PARTY: None

MOTION FOR ATTORNEY FEES AND COSTS

(Code Civ. Proc., § 685.040)

TENTATIVE RULING:

The Court GRANTS Maricopa Meadows Homeowners Association's motion for attorney fees and costs in the amount of \$1,538.79, comprising \$1,072.50 in attorney fees and \$466.29 in costs.

Maricopa is to give notice.

SERVICE:

☒ [X]

Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ [X]

Correct Address (CCP §§ 1013, 1013a) OK

☒ [X] 16/21 Court Days Lapsed

(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of August 29,
2026 ☐ [] Late ☒ [X] None

REPLY: None filed as
of August 29, 2026 ☐ []
Late ☒ [X] None

ANALYSIS:

In October 2016, the Court domesticated
an Arizona judgment in favor of Maricopa Meadows Homeowners Association and
against Jermayne Cooper and Jeanette Morgan.
Maricopa now moves for an award of attorney fees and costs incurred
post-judgment.

Attorney fees are allowable as costs
when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd.
(a)(10).) Code of Civil Procedure
section 685.040 entitles a judgment creditor to reasonable and necessary costs
of enforcing a judgment, including attorney fees, if the underlying judgment
includes a fee award. The judgment
creditor may claim those costs through a noticed motion before the judgment is
satisfied in full, but not later than two years after the costs have been
incurred. (Id., § 685.080, subd.
(a).)

Notice of Maricopa's motion was served properly on judgment debtors Cooper and Morgan. The sister-state judgment provides for "all reasonable costs and attorneys' fees incurred by [Maricopa] after entry of [the] judgment in collecting the amounts awarded [in the judgment]." The judgment has not yet been satisfied, and the fees and costs sought by Maricopa were incurred between July 30, 2024 and now.

The Court's objective is to award those fees at the fair-market value for the attorneys' work. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) That can be done by multiplying the number of hours the attorneys reasonably expended by a reasonable hourly rate. (*Id.* at p. 1132, 1134.) Maricopa seeks attorney fees based on its counsel, B. Austin Baillio's, hourly rate of \$375.00 per hour on one occasion, \$425.00 per hour on another occasion, and some services performed for a flat fee. Maricopa also seeks paralegal fees based on the hourly rates of \$175.00 per hour for some of the paralegals which increased to \$185.00 per hour for one paralegal.

With his declaration, Baillio provides a ledger for this matter, with itemized hours demonstrating the specific tasks completed and the fees thereby incurred. In total, the ledger reflects \$1,230.50 in fees, consisting of 4.7 hours of total work, including 0.4 for attending this hearing. The Court finds both the rates and numbers of hours expended to be reasonable—minus the time spent remotely attending a hearing on an unopposed motion.

The Court deducts that time, valued at \$158.00, for a total fee award of \$1072.50.

Maricopa also requests costs in the amount of \$466.29, which includes electronic monitoring fees, filing fees, and service fees. The Court finds this amount supported by the ledger provided by Baillio.

Accordingly, the Court GRANTS Maricopa's motion for attorney fees and costs in the amount of \$1,538.79.

Maricopa is to give notice.